



AL-RAHEEM

Smart City



POSSESSION FORM

Passport Size Pic

Customer Detail:-

Name: _____ Fathers Name: _____ CNIC: _____

Address: _____

Plot Detail:-

Project Name: _____

Plot No: _____, Plot size: _____, Plot dimensions: _____

Details of Warranty Cheques:-

1. Cheque No. _____	Amount. _____	Date: _____
2. Cheque No. _____	Amount. _____	Date: _____
3. Cheque No. _____	Amount. _____	Date: _____
4. Cheque No. _____	Amount. _____	Date: _____
5. Cheque No. _____	Amount. _____	Date: _____
6. Cheque No. _____	Amount. _____	Date: _____
7. Cheque No. _____	Amount. _____	Date: _____
8. Cheque No. _____	Amount. _____	Date: _____

Hussain developer Signature

Architect Signature

Hussain Developers & Builders, Opposite Civil Hospital, Jhangiwala Road Bahawalpur Agreement among the parties about the rules and regulations/conditions for identification, possession, construction, residence and plot situated at Al Raheem Housing Scheme Hasilpur Road Bahawalpur. In this agreement, the entity will be observed as Hussain Developers & Builders and the Scheme/Town of Al Raheem Housing Scheme Hasilpur Road Bahawalpur. Whereas the owner of the plot, it means the buyer file, customer, occupant, allottee, holder registry/deceased along with the legal heirs.

TERMS & CONDITIONS

1. No subdivision of any plot will be permitted.
2. The Buyer must pay the Possession Fee set by the Developer upon taking possession, and an NOC (No Objection Certificate) from the Developer is mandatory for possession).
3. In any case will demolition of roads or sewerage will be permitted unless it is necessary for urgent reasons, prior permission will be obtained from the institution and the cost of reconstruction will be deposited in advance.
4. If due to any act/fault/accident of the allottee, any property of the road, town is damaged, the entire liability of the allottee will be on the allottee and he will be bound to pay the same to the Hussain Developer.
5. Masonry will not be done with any other material other than cement, such as mud, and the roof will be made of lantern.
6. If the town developer makes further extensions in the town/scheme roads and the town constructs a new road or passage in the town/scheme, then the second party will not have any reason to object to it and the second party will not have the right to take any legal action in this regard.
7. At the time of construction of house/shop etc., the buyer will not keep his construction material and goods on the road and road side and will not do any work within on the road and road side. In the event of damage to any property of scheme/Town, the buyer will be liable to pay all repair costs incurred.
8. After the completion of the house, the second party or his relatives will not throw the garbage, wastage etc. residing in the house anywhere except in the designated box.
9. Any community club facility to be availed by the purchaser. Buyers will be able to avail the facilities by paying its annual membership fee. All the arrangements of the Community Club will be under the supervision of Hussain Developers. No other party will be authorized to make any decision in this regard.
10. In case of any objection or dispute will be bound to be referred to arbitration. This office (Hussain Developers) will perform its duties as an intermediary body. The director of this institution will be the chairman of the arbitration council. And all this process will be completed under Arbitration Act 1940.
11. Buyer/allottee if government of Pakistan (each Department etc. TMA, Baldia, Punjab Govt. District Govt. Excise and Taxation, PRA FBR, and All government organization) has any Tax or fees of any kind. Buyer/allottee will be bound to pay the Town plot, shop if applicable.
12. The level of construction will be the same. The level of the garage will be up to 06 inches and the ramp length will be 5 feet.
13. Hussain Developers will be obliged to provide development works (sewerage, roads and electricity). In case of any additional facility provided by the developer in the form of any additional government fee or development, whatever additional gratuities there may be. Buyers will be obliged to pay without any excuse. In case of delay in the supply of electricity or any facility by the government, every buyer will be obliged to pay additional amount on the cost of material.
14. Sui gas is not included in the development and its charges will be separately paid by the Buyer. On sanctioning/approval of the Sui Gas for the housing Scheme/Town. The Buyer will be liable to make payment of the demand notice and other expenses per marla as assessed by the Developer.
15. The development will be completed within a period of installments from the date of receipt of the booking price of the house paid in full or from the date of signing the agreement, provided no extra works or variations involved and subject to availability of labor and material, and subject to any reason beyond the control of the Developer viz-a-viz. Force Majeure e.g, war natural calamity, civil commotion, strikes, go-slow be labor, change in the fiscal policy of federal provincial or local government, any legal restriction imposed by any court of law or any other government/semi government agency etc.
16. Adherence to TMA's building rules and bye-laws enforced by this institution will be mandatory during the construction process. Violation will be the responsibility of the plot owner.
17. After the possession is identified, buyer/allottee will be bound to carry out the construction works as per the marks. And thereafter the allottee of the plot will be bound, to start the construction work as per the marks, in case of deviation in the measurement, buyer/allottee will be liable to pay the penalty prescribed by the justitution. In case of illegal encroachment, the allottee of the plot will be bound and responsible for its vandalism. Also, in case of getting the plot measured again, buyer will pay the fee again. Measurements are given as per possession from on Sundays at 9:00AM.

18. In case of violation of the terms and conditions, the organization will have the right to all kinds of legal proceedings. Buyers/allottees of Hussain Developers will be bound to construct houses/shops as per the rules and regulations issued by the management of Hussain Developers, and the regulations in their own rules, terms and conditions which will be issued and changed from time to time will also apply to the allottees/buyers of Hussain Developers and they will be bound to accept it. And before the construction of the house/shop, the allottee will also have to submit the affidavit to the management agency Hussain Developers.
19. The height of the parapet wall in any building will not be more than 3 feet.
20. All plot owners will be bound to get the map approval from the Hussain developers before constructing the house, without approval, the map developers will have the Hussain developer to stop the construction of the house. Map approval fee will be applicable.
21. If the buyer/allottee violates any of the following conditions, then the developer will be entitled to collect four times the price of the said plot from the buyer/allottee. And the heir/heirs will also be bound by it. The developer has the right to all kind of legal proceedings.
22. All purchasers/allottees will be bound by the rules and regulations issued by the Hussain Developers Committee through the committee regarding opening and closing timings, and security of parks and sports complexes.
23. No buyer/allottee will be allowed to construct a door, crack or window in the boundary wall of the Scheme/Town under any circumstances (except the institution).
24. No animals, except cats, dogs and birds will be allowed inside the Scheme/Town. Also, the above animals and birds will not be allowed to be kept at commercial level.
25. Adherence to the by-laws of this institution is mandatory for every buyer plot. Copies of the bylaws of the scheme/town are available at the head office/site office and can be received in office timings.
26. The second party/buyer of plot/allottee will be bound to take possession from the selected representative of the town developer after obtaining the copy of the possession from approved by the town developers and submitting the prescribed fee. And will be bound by all conditions written on the possession form. And after getting possession, the second party buyer/plot allottee/resident/tenant will be bound to pay the prescribed maintenance fee every month to the committee appointed by the scheme/Town Developers. And no allottee/resident/tenant will have any right or Hussain developer to interfere in administrative affairs. In case of non-payment of maintenance fee, the developers/committee will have the right to disconnect all the facilities (security, electricity, water, sewage and sanitation etc.) assigned to the allotted plot. The allottee will be bound to pay the maintenance charges to the selected authorized representative appointed by the Hussain developers. The head of the scheme/town will have full Hussain developer to cancel or reschedule the town management committee.
27. At the time of possession buyer/allottee will come with these following things with him (4 iron roads of 2' feet each) (1 kg lime)

DRAWINGS AND RELATED DOCUMENTS

Application for construction, addition or alteration of building will be made to the developer with the following documents: -

1. One original on tracing cloth and five copies of ammonia print of drawing.
2. Copy of allotment/transfer letter, site plan and Computerized National Identity Card (CNIC).
3. Paid challan for dues as prescribed by the developer.

BUILDING PLANS/ DRAWINGS

The building plan/drawings, designed and signed by registered Architect hired by Hussain developer will be submitted by the person to Hussain developer, indicating the following details:

1. External dimensions of the main building, with extended portions.
2. Thickness and composition of all beams/columns/lintels and other, R.C.C components and all other supports.
3. Schedule of open, covered and permissible areas.
4. Positions and dimensions of all projections beyond the walls.
5. Internal dimensions of all rooms.
6. Layout of water supply including construction details of underground and over head water tanks.
7. Cross section of ramp with detail of surface water channel and driveway.
8. Layout of sewerage system with septic tank, detail of sump, collection chamber and cross section of septic tanks.
9. Schedule of steel reinforcement of roofs, beams and lintels and other R.C.C elements.
10. The level and width of the foundations and level of the ground floor and each floor with reference to the level of the center of the road on which the building abuts.
11. The dimensions of all rooms and positions of doors, windows and ventilators of each room, schedule of doors and windows indicating sill level.

12. Details for foundations, plinth, super structure, roof, walls up to the roof level and parapet.
13. Site of the plot showing width of road & key plan of the layout of building.
14. Plan and elevation at the scale of 1 inch = 8 ft.
15. X-Sections & L-Sections at the scale of 1 inch = 4 ft.
16. A certificate from the registered Architect that all components of the building have been designed by him / her.
17. Structural stability certificate for residential buildings from the registered structural engineer, whereas for commercial buildings it should be signed by a qualified structural engineer with valid registration with Pakistan Engineering Council as consulting engineer (M.Sc Structure), with minimum 5 years' experience, will be submitted along with building plans of multi-story buildings.
18. The applicant will on demand produce all necessary details of the structural designs / calculations in order to ensure the safety of the buildings.

SCRUTINY OF DRAWINGS AND DOCUMENTS

1. The Hussain developer will scrutinize the drawings and documents within 30 days.
2. The Hussain developer may reject the application and return the drawing and documents, if plans are illegible, ambiguous or in contravention to the rules and regulations, by giving reasons in writing for such refusal and return along with guidelines for resubmission.
3. The Hussain developer also reserves the right of rejecting the plans or suggesting any modification which though may not contravene with the rules and regulations but are injurious to health, welfare, safety and comfort of the residents and their interests.
4. The applicant may resubmit such an application after necessary modifications, corrections and rectification/removal of observations in the drawings and documents, on resubmission it will be deemed, as if the fresh application has been submitted and a period of 30 days for approval will again commence from the date of resubmission.
5. After the approval, the applicant will collect the documents in person or through attorney.

CONSTRUCTION PERIOD

1. The person will commence construction of the building within a period of 3 years from the date the area has been opened for possession /construction by the Hussain developer, failing which the person will be liable to pay non - construction penalty as prescribed by the Hussain developer.
2. The person will complete the building within a period of one & half year reckoned from the date of approval of the drawing by the Hussain developer.
3. The drawing will remain valid for two years from the date of its approval. Upon the lapse of the 2 year period of validity the person will be under an obligation to obtain fresh approval.

VERIFICATION OF CONSTRUCTION AT DIFFERENT STAGES

Every person will be bound to get construction verified from the site architect or engineer of the Hussain developer at the following stages in order to avoid violations of the regulations.

1. When the layout has been completed before starting the work.
2. On completion of the boundary wall at Natural Ground Level.
3. On construction of the main building upto DPC level.
4. Before pouring of roof slab of the ground floor.
5. On raising of 1st floor structure one foot above roof of ground floor.
6. Before pouring roof slab of 1st floor.
7. On construction of septic tank and ramp.
8. On final completion before occupation at the time of getting sewer connection opened.

Note: Permission to proceed further after inspection of a stage does not allow the registered person from his responsibility to construct a house free of violations, in case some violations are observed at any stage thereafter registered person will have to get these removed as soon as such a violation is intimated to him / her by the Hussain developer.

In case of violation of rules, the owner will pay fine and construction at that stage will be demolished, at the risk and cost of the owner.

VARIATION IN PLOT SIZE

1. If measurement varies due to town planning or re-planning, Owner of such plot will pay extra charges or claim refund according to rates determined by Hussain developers (in case already have paid extra charges) In case of corner plot, measurements varies due to any circumstances, the buyer/allottee is bound to accept non-corner plot and will get refund of additional amount deposited for corner plot residential plots will not be used for any commercial purpose, during construction no one is allowed to place any kind of construction material on green belt or road neither mixing of cement etc is allowed.

Development charges

1. It will be made (time to time) and person will be responsible to pay balance If development charges imposed by Hussain developer are not paid on time, person will be liable to pay a surcharge and rate will be prescribed by Hussain developer

PHYSICAL MARKING

1. Every person will write an application to Hussain developer for demarcation after receipt of approved drawings.
2. Fees will be prescribed by Hussain developer

SUB-DIVISION

1. Services are made on basis of one house per plot that's why, Subdivision is not allowed
2. Subdivision of plots (exceptional case) is only allowed if Hussain developer gives permission to do so charges will be prescribed by Hussain developer

MERGING OF PLOTS

1. Hussain developer may allow (exceptional case) two or more plots to merge on payment fixed by Hussain developer.
2. Constructed houses should not be merged.
3. Once merged in few cases, sub division will be discouraged and could only be permitted on payment of double fees

Water supply

1. Application of water connection will be made to building control branch and the owner will pay connection fee as prescribed.
2. Applicant will pay charges for per meter or flat rate decided by Hussain developer.
3. Hussain developer will allow to bore a willow pump only for construction which will be destroyed on completion otherwise no person is allowed to bore any kind of pump for supply of water.
4. If person doesn't follow it, he will be charged fine described by Hussain developer.
5. If a person is willing to have any pump for water supply he will have to get permission and will pay extra charges for connection monthly along with the charges of main water connection.
6. Separate charges for houses with swimming pools or maintaining lawns

SEWERAGE

1. Sewerage will be provided by Hussain developer by connecting sewer with main network connection charges will be paid separately as well as monthly charges will be decided by Hussain developer.
2. Septic tank will be constructed and maintained by owner
3. Septic tank will construct under porch.

DIGGING

1. NO ONE IS ALLOWED to dig cut or destroy the road space including its sides called berms, shoulders without permission otherwise he will be liable to pay fine as well as making good any damages so caused

CONSTRUCTION, ADDITION AND ALTERATIONS

1. For construction, addition and alteration a person will make an application and no one is allowed to do any changes without any approval by Hussain developer.
2. Charges will be prescribed by Hussain developer according to the alterations.
3. Addition or alteration of building will be discussed and approved by the architect hired by Hussain developer.
4. Dues of architect will be paid by owner prescribed by Hussain developer.

RULES FOR BUILDING CONSTRUCTION

CLEAR SPACES

- a. Person will have to leave the following minimum clear spaces including boundary walls for each category of plot: -

	<u>AREA</u>	<u>FRONT</u>	<u>REAR</u>	<u>SIDE</u>	<u>SIDE</u>	<u>CHAMFER</u>	<u>PORCH</u>
(1)							
(2)	1 Kanal Plot	15 feet	5 feet	5 feet	5 feet	7’X7’	2
(3)	10 Marla Plot	10 feet	5 feet	5 feet		7’X7’	2 FOR CORNER PLOT
(4)	8 Marla Plot	8 feet	4 feet	3 feet 6 inch		5’X5’	1
(5)	7 Marla Plot	7 feet	3 feet			5’X5’	1
(6)	5 Marla Plot	5 feet	5 feet			5’X5’	1

Note:

1. No construction, even temporary, will be carried out in the clear spaces except stair for basement.
2. After completion of house developer will check/examine construction work/house and Hussain developers will issue a safety certificate.
3. After completion of house extra waste material will be cleaned and collected by the buyer/allottee.
4. After gray structure of house/shop complete the buyer/allottee will inspect the plumbing work by the developer.
5. If the measurement lines and spots lost or missing after taking possession then buyer/allottee will have to pay another fee for taking possession again.
6. Place for temporary washroom and store room for keeping material will be allocated by the developer.
7. Spiral steel stair will be allowed in rear side specified clear space for roof top, if there is no access to roof through internal stairs of house.
8. Finish level of porch will be 1’-0” high from road level.
9. Plinth level of building from road level will not exceed 2 feet (2’-0”).
10. Ramp slope will not cross 5 feet (5’-0”) from boundary wall.
11. Rain water disposal will be controlled by using trench at the corner of ramp.
12. To rent out the house owner will get permission from the Hussain developer.
13. Dogs, cats and birds are only allowed to be kept as pet.
14. No commercial/semi-commercial activity is permitted in residential area.
15. Vacant plots/open area cannot be used for any function/gatherings except funeral gathering.
16. Flags / banners which shows political/religious/sectarian affiliations are not allowed on both residential and commercial buildings.
17. Maximum height of boundary wall will be 7 feet (7’-0”) from the crown of adjacent road.
18. 2 feet (2’-0”) height steel grill, fence or wooden / steel louvers may be erected on top

- of boundary wall for security purpose.
19. A water channel of 6"x6" would be constructed along the main gate line, the drain would be suitably connected to overflow manhole of septic tank through a 4"-inch dia pipe.
 20. One gate for single plot and two gates are allowed for corner plots.
 21. In a residential building a guard post may be constructed having inner size of 6' x 6' with the max. Height of 8 feet (8'-0") from road level adjacent to the main gate towards the lawn.
 22. 1 to 4 trees must be incorporated.
 23. Fixing of strings only on rooftop is allowed for hanging of clothes.
 24. No labour under the age of 14 is permitted on the construction site.
 25. Safety of worker labour and visitor will be sole responsibility of member / owner.
 26. Solar panel install on rooftop only.
 27. 2 feet (2'-0") wide flower bed of small plants parallel to boundary wall made of bricks or other similar material, having max. Height of 6" inches.
 28. Height of mumty should be minimum 9'-6".
 29. Parapet wall 36" inches (3'-0") with clear space and side terrace wall should be 3' feet brick work + 4 feet louvers +1 feet beam.
 30. Placement of generator is allowed on rooftop.
 31. Sunshade / rain shade 2' feet (2'-0") wide with 6"-inch drop off is allowed.
 32. Temporary shade of 6'x 4' ft for washing machine COS (Compulsory open space).
 33. Temporary stairs in COS (Compulsory open space).
 34. All rooms, baths and kitchen will be ventilated.
 35. Member will ensure quality termite proofing treatment before commencement of construction work.
 36. All persons will be bound to provide at least one fire extinguisher in each house every two houses should have mirrored gates in one row of a residential lane.
 37. Truck of more than 800 CFT cannot enter in Scheme/Town without permission from Hussain developer.
 38. I declare under oath that I will abide by all these terms and conditions. In case of violation, the final decision will be taken by Hussain Developers and Builders.

I am _____. As the buyer/assignee has read all the terms and conditions. Which I agree with. Nor will I have any objection later will be responsible for any omissions on his/her own part.

Customer Signature

Customer Thumb

